

Court No. - 40

Case :- WRIT - C No. - 26547 of 2022

Petitioner :- Mohd Meraz Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kailash Nath Singh, Pramod Kumar Yadav

Counsel for Respondent :- CSC, Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

This writ petition has been filed by the petitioner for the grant of a fresh electricity connection as he had taken the premises on rent and the landlord was not providing him with the Electricity Connection. Learned counsel for the Electricity Department, Sri Udit Chandra has, however, opposed the prayer on account of the fact that there were electricity dues on the owner to the tune of Rs.12 lakh and, therefore, as per the third proviso of Clause 4.1, of the Electricity Supply Code, 2005, the tenant could not get the electricity connection. Further learned counsel for the Electricity Department has relied upon the Clause 4.3(f) of the Electricity Supply Code, 2005 and has stated that it was the duty of the subsequent occupier to find out if there is any outstanding electricity dues before he came into occupation.

Learned counsel for the Electricity Department further states that, even if there is no electricity dues the tenant would have to come forward with the latest rent receipt and also a valid lease deed.

In the instant case we find that there is neither a valid lease deed nor has the latest receipt of the rent paid been filed.

Under such circumstances, no interference is warranted in the instant writ petition.

Accordingly, the writ petition is dismissed.

Order Date :- 10.11.2022

vkj

(Ajit Singh, J.) (Siddhartha Varma, J.)